ARB 027/2024 Nalani v Netty

OCTOBER 02, 2025 ARBITRATION - ORDERS

Claim No: ARB 027/2024

IN THE DUBAI INTERNATIONAL FINANCIAL CENTRE COURTS

IN THE COURT OF FIRST INSTANCE

BETWEEN

NALANI

Claimant/Respondent

and

NETTY

Defendant/Applicant

ORDER WITH REASONS OF H.E. JUSTICE SHAMLAN AL SAWALEHI

UPON the Order of H.E. Justice Shamlan Al Sawalehi dated 22 September 2025 dismissing the Defendant's PTA Application and the Stay Application (the "Order") (the "Applications")

AND UPON paragraph 3 of the Order directing that the Defendant pay the Claimant's costs of the Applications

AND UPON the Claimant's Statement of Costs dated 10 September 2025

AND UPON reviewing the Statement of Costs and the supporting material

AND UPON considering Part 38 of the Rules of the DIFC Courts ("RDC") and Practice Direction No. 4 of 2017 (Interest on Judgments)

IT IS HEREBY ORDERED THAT:

1. The Defendant shall pay the Claimant AED 208,955.80 (the "Costs Award"), representing 80% of the total amount claimed in the Statement of Costs.

2. The Costs Award shall be paid within 14 days from the date of this Order, pursuant to RDC 38.40.

3. In the event the Defendant fails to pay the Costs Award within 14 days of this Order, interest shall accrue at the rate of 9% per annum from the date of this Order until full payment is made, in accordance with Practice Direction No. 4 of 2017.

Issued by:

Delvin Sumo

Assistant Registrar

Date of issue: 2 October 2025

At: 10am

SCHEDULE OF REASONS

1. This Order concerns the Claimant's entitlement to costs pursuant to paragraph 3 of the Order dated 22 September 2025 by which I dismissed the Defendant's PTA Application and Stay Application.

2. The Claimant duly filed its Statement of Costs on 10 September 2025, claiming a total of AED 261,194.75.

3. I am satisfied that the hourly rates charged fall within the market range permitted by Registrar's Direction No. 1 of 2023. The structure and staffing of the Claimant's legal team, and the steps taken in these proceedings, were proportionate to the complexity and procedural demands of the matter.

4. However, in the exercise of my discretion under RDC 38.8 and RDC 38.23, and applying the standard basis of assessment, I consider that a reduction is warranted. I assess the Claimant's recoverable costs at 80% of the amount claimed.

5. In the circumstances, I consider that AED 208,955.80 represents a fair, proportionate, and reasonable quantification of the Claimant's recoverable costs, in accordance with the overriding objective and the principles of judicial economy.

6. Accordingly, I award the Claimant costs in that amount, payable within 14 days, with interest accruing thereafter in accordance with the DIFC Courts' standard practice.